

Part 6: Drugs and Cosmetics Rules , 1945

Rule 160K

Title: Information to Be Uploaded by the Licensee on Online Portal

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160K

Plain English Summary:

Rule 160K requires applicants and licensees under this Part to register on the e-AUSHADHI portal. They must upload information related to licence applications, renewals, tests conducted and other required details. The concerned Licensing Authority verifies the information uploaded by the licensee.

The Exact Legal Text:

160K. Information to be uploaded by the licensee on online portal.—

(1) The applicant or licensee under this part shall register with portal, e-AUSHADHI (www.e-aushadhi.gov.in) and upload information, as per the format provided in the said portal, pertaining to licence application, renewal, tests carried out and other such information as required and shall be updated from time to time.

(2) The information uploaded by the licensee in the portal under sub-rule (1) shall be verified by the concerned licensing authority.

Keywords/Triggers:

Rule 160K, e-AUSHADHI portal, online licence application, licence renewal, testing information, Licensing Authority verification, Ayurvedic drug portal

Rule 161

Title: Labelling, Packing and Limit of Alcohol for Ayurvedic, Siddha and Unani Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 161

Plain English Summary:

Rule 161 specifies the information that must appear on the label and packaging of Ayurvedic, Siddha and Unani medicines. The label must mention the ingredients, botanical names, quantity, manufacturer details, manufacturing licence number, batch number, manufacturing date, and other required warnings. It also prescribes special labelling and packing requirements for medicines containing alcohol and medicines intended for external use.

The Exact Legal Text:

161. Labelling, packing and limit of alcohol.—

(1) There shall be conspicuously displayed on the label of the container or package of an Ayurvedic (including Siddha) or Unani drug, the true list of all the ingredients with the botanical names of plant-based ingredients along with plant part(s) and form of ingredients, in which these are used in the manufacture of the preparation, together with the quantity of each of the ingredients incorporated therein and a reference to the method of preparation thereof as detailed in the standard text and Adikarana, as are prescribed in the authoritative books specified in the First Schedule of the Act and in respect of Patent or Proprietary Ayurveda, Siddha or Unani drugs, the true list of all the ingredients with the botanical names of plant-based ingredients along with plant part(s) and form of ingredients, in which these are used in the formulation, with their quantity:

Provided that, if needed, standardized abbreviations prescribed for part(s) and form of ingredient(s) in the official Ayurveda, Siddha and Unani Pharmacopoeias and Formularies may be used on the label:

Provided further that, if the list of ingredients contained in the medicine is large and cannot be accommodated on the label, the same may be printed separately and enclosed with the packing, and reference be made to this effect on the label.

(2) The container of a medicine for internal use made up ready for the treatment of human ailments shall, if it is made up from a substance specified in Schedule E(1), be labelled conspicuously with the words “Caution: to be taken under medical supervision” both English and Hindi languages.

(3) Subject to the other provisions of these rules, the following particulars shall be either printed or written in indelible ink and shall appear in a conspicuous manner on the label of the innermost container of any Ayurvedic (including Siddha) or Unani drug and Patent or Proprietary Ayurveda, Siddha or Unani drugs and on any other covering in which the container is packed, namely:—

(i) The name of the drug. For Ayurveda, Siddha or Unani Drug purpose the name shall be the same as mentioned in the authoritative books included in the First Schedule of the Act.

(ii) A correct statement of the net content in terms of weight, measure or number as the case may be. The weight and volume shall be expressed in metric system.

(iii) The name and address of the manufacturer.

(iv) The number of the licence under which the drug is manufactured, the figure representing the manufacturing licence number being preceded by the words "Manufacturing Licence Number" or "Mfg. Lic. No." or "M.L.".

(v) A distinctive batch number, that is to say, the number by reference to which details of manufacture of the particular batch from which the substance in the container is taken are recorded and are available for inspection, the figure representing the batch number being preceded by the words "Batch No." or "Batch" or "Lot Number" or "Lot No." or "Lot" or any distinguishing prefix.

(vi) The date of manufacture. For this purpose the date of manufacture shall be the date of completion of the final products, or the date of bottling or packing for issue.

(vii) The words "Ayurvedic medicine" or "Siddha medicine" or "Unani medicine" as the case may be.

(viii) The words "FOR EXTERNAL USE ONLY" if the medicine is for external application.

(ix) Every drug intended for distribution to the medical profession as a free sample shall, while complying with the labelling provisions under clause (i) or (viii), further bear on the label of the container the words "Physician's sample. Not to be sold" which shall be overprinted.

(x) The following limits shall apply to specified preparations containing alcohol:

(a) Preparations with high content of alcohol as base.

Kapur Asava shall have a maximum packing size of 15 ml.

Ahiphenasava shall have a maximum packing size of 15 ml.

Margamadasava shall have a maximum packing size of 15 ml.

(b) Preparations containing self-generated alcohol.

Mritsanjivani Sura shall contain a maximum of 16 per cent ethyl alcohol v/v and shall have a maximum packing size of 30 ml.

Mahadrakshava shall contain a maximum of 16 per cent ethyl alcohol v/v and shall have a maximum packing size of 120 ml.

(4) Nothing in these rules shall be deemed to require the labelling of any transparent cover or of any wrapper-case or other covering used solely for the purpose of packing, transport or delivery.

Keywords/Triggers:

Ayurvedic drug labelling requirements, Rule 161 Drugs and Cosmetics Rules, botanical names on Ayurvedic medicine label, Ayurvedic manufacturing licence number, batch number and manufacturing date, Schedule E(1) caution warning, Ayurvedic medicine external use label, alcohol limit in Asava and Arishta.